

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on October 5, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On October 5, 2023, a complaint was submitted to this Agency by Ms. A.A.A. (hereinafter, the complainant) against the CENTRAL UNION OF THE BARRIOS DE LUNA RESERVOIR (hereinafter, the respondent) for not having duly addressed her right of access to her personal data.

The complainant states that, in June 2023, the respondent claimed a debt from her without confirming the property to which it corresponded. Dissatisfied with this debt, the complainant filed a motion for reconsideration through which, among other issues, she requested a copy of the file that concludes with the notification of the enforcement order, as well as access to the personal data and processing carried out by the union.

The complainant provides:

- notification of the enforcement order from the irrigation union to the complainant, dated May 2, 2023
- motion for reconsideration filed by the complainant against the respondent dated June 6, 2023, in which her request for access to her personal data is recorded,
- resolution of the aforementioned motion for reconsideration, dated September 11, 2023;

SECOND: Upon examining the complaint filed with this Agency, it was considered that "(...) In this case, after analyzing the documents provided and the circumstances present, there are no reasonable indications of the existence of an infringement within the jurisdiction of the Spanish Agency for the Protection of Data," and therefore, in accordance with the provisions of Article 65.2 of the LOPDGDD, by resolution of the Director of the Spanish Agency for the Protection of Data dated October 30, 2023, it was agreed to dismiss the complaint.

THIRD: Dissatisfied with the resolution, the complainant filed a motion for reconsideration arguing that a complete response had not been provided to the data requested under the right of access, and that she has been left unprotected and defenseless, contrary to what is stated in Article 24 of the Spanish Constitution, since by not being granted access to her personal data, she does not know which properties generate the alleged debts and the actual knowledge of the claimed debt.

Upon instruction of the corresponding Motion for Reconsideration procedure, on December 4, 2023, the Director of this Agency considered it because new relevant arguments were presented that must be analyzed.

FOURTH: As a consequence of the acceptance of the aforementioned Motion for Reconsideration, and in accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent indicated that they received the complainant's request but had not yet responded.

On January 15, 2024, the respondent submitted a new document along with a copy of the response addressed to the complainant, in which they apologize for the delay in processing her request.

Furthermore, they indicate the origin of the data, which has been provided by the complainant herself, as well as the identity of the data controller, the planned communications, and inform her of the purposes of the processing.

FIFTH: The result of the transfer procedure indicated in the previous Fact did not satisfy the claims of the complainant. Consequently, on January 5, 2024, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present any allegations they deemed appropriate within ten working days, without any response being recorded in this Agency.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/9

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by data subjects and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with the said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the complainant.

The result of this forwarding did not allow for the satisfaction of the complainant's claims.

Consequently, on January 5, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission to processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons if it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

Right of Access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request to be addressed (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in data protection legislation. Therefore, in this case, only the facts related to the exercise of these

rights will be analyzed and assessed, excluding the other issues raised by the parties.

The Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, state that

“3. Under the GDPR, the right of access consists of three components, namely, the confirmation of whether or not personal data is being processed, access to the data, and information about the processing itself. The data subject may also obtain a copy of the personal data processed, while this possibility is not an additional right of the data subject, but rather the modality of providing access to the data. Therefore, the right of access can be understood both as the possibility for the data subject to ask the data controller whether personal data concerning them is being processed, and as the possibility to access and verify this data. The data controller shall provide the data subject, based on their request, with the information included within the scope of Article 15, paragraphs 1 and 2, of the GDPR.

(...)

16.1.1.

Definition of the content of the right of access

17. Article 15, paragraphs 1 and 2, contains the following three aspects: first, the confirmation of whether the personal data of the requesting person is being processed; if so, second, access to that data; and third, information about the processing. These can be considered as three different components that together constitute the right of access.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/9

17.1.1.1. Confirmation of whether or not personal data is being processed

18. When making a request for access to personal data, the first thing that data subjects must know is whether the data controller is processing data concerning them. Therefore, this information constitutes the first component of the right of access under Article 15, paragraph 1. When the data controller does not process personal data related to the data subject requesting access, the information provided will be limited to confirming that no personal data related to the data subject is being processed. When the data controller processes data relating to the requesting individual, the data controller must confirm this fact to that individual. This confirmation may be communicated separately, or it may be included as part of the information about the personal data being processed (see below).

2.2.1.2 Access to the personal data being processed

19. Access to personal data is the second component of the right of access under Article 15, paragraph 1, and constitutes the core of this right. It refers to the notion of personal data as defined in Article 4, paragraph 1, of the GDPR. Apart from basic personal data, such as name and address, an unlimited variety of data may be included in this definition, as long as it falls within the material scope of the GDPR, especially regarding how it is processed (Article 2 of the GDPR). Access to personal data means access to the actual personal data, not just a general description of the data or a mere reference to the categories of personal data processed by the data controller. If no limits or restrictions apply, data subjects have the right to access all data processed in relation to them, or parts of the data, depending on the scope of the request (see sec. 2.3.1). The obligation to provide access to the data does not depend on the type or source of such data. It applies in its entirety even in cases where the requesting individual initially provided the data to the data controller, as its purpose is to inform the data subject about the actual processing of such data by the data controller. The scope of personal data under Article 15 is explained in detail in sec. 4.1 and 4.2.

(...)

2.3 General principles of the right of access

34. When data subjects submit a request for access to their data, in principle, the information referred to in Article 15 of the GDPR must always be provided in full. Consequently, when the data controller processes data relating to the data subject, the data controller will provide all the information referred to in Article 15, paragraph 1, and, where applicable, the information referred to in Article 15, paragraph

2. The data controller must take the measures

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/9

suitable to ensure that the information is complete, correct, and up-to-date, as close as possible to the state of data processing at the time of receiving the request. When two or more data controllers process data jointly, the arrangement of the joint controllers regarding their respective responsibilities in relation to the exercise of the rights of the data subject, especially concerning the response to access requests, does not affect the rights of the data subjects against the data controller to whom they direct their request.

(...)

42.1.1.

Analysis of the content of the request

43. This issue can be evaluated more specifically by asking the following questions.

a)

Does the request refer to personal data?

44. Under the GDPR, the scope of the request will only cover personal data. Therefore, any request for information regarding other matters, including general information about the data controller, its business models, or its data processing activities not related to personal data, will not be considered a request made in accordance with Article 15 of the GDPR. Additionally, a request for information about anonymous data or data that does not concern the requester or the person on whose behalf the authorized person made the request will not fall within the scope of the right of access. This question will be analyzed in more detail in section 4.

45. Unlike anonymous data (which is not personal data), pseudonymous data, which could be attributed to a natural person through the use of additional information, is personal data. Therefore, pseudonymous data that can be linked to a data subject, for example, when the data subject provides the respective identifier that allows their identification, or when the data controller can connect the data to the requester by their own means, must be considered within the scope of the request.

(...)

e) Do the data subjects wish to access all or part of the information processed about them?

51. Furthermore, the data controller must assess whether the requests made by the requesters refer to all or part of the information processed about them. Any limitation of the scope of a request to a specific provision of Article 15 of the GDPR, made by the data subjects, must be clear and unequivocal. For example, if the data subjects literally require "information about the data processed concerning them," the data controller must assume that the data subjects intend to fully exercise their right under Article 15, paragraphs 1 to 2, of the GDPR. Such a request should not be interpreted as meaning that the data subjects wish to receive only the categories of personal data being processed and waive their right to receive the information listed in Article 15, paragraph 1, letters a) to h). This would be different, for example, when the data subjects wish, regarding the specified data, to have access to the source or origin of the personal data or the specified retention period. In such a case, the data controller may limit their response to the specific information requested.

In the present case, and considering the provisions of the first paragraph of this legal basis, it has been established that the claimant requested the respondent access to their personal data and that in the response provided directed to the claimant, their data was not provided, nor was the duty of compliance with the response established in Article 12.4 of the LOPDGDD demonstrated: "4. The burden of proof for compliance with the duty to respond to the request for the exercise of their rights made by the affected party shall fall on the controller."

Consequently, it is appropriate to uphold the complaint filed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Ms. A.A.A. considering that the provisions of Article 15 of

the GDPR have been infringed and to urge SINDICATO CENTRAL DEL EMBALSE DE BARRIOS DE LUNA with NIF G24010530, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to SINDICATO CENTRAL DEL EMBALSE DE BARRIOS DE LUNA.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/9

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es